

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an appeal against the order dated 17.11.2021, made by the learned High Court Judge of the Western Province holden at Colombo in case bearing No. 101/20 HCRA.

**Court of Appeal Case No:
32/22 CA/PHC APPEAL**

**High Court Case No.
HCMCA/101/20**

MC Case No. 5720/8/19

Vs.

Belida Rachel Keegal

No. 93, W.A. Silva Mawatha,
Colombo 6.

APPLICANT

Rajapakse Arachchige Sanjeewa

Subhasha Rajapakse,

No. 865A, Peradeniya Road,
Kandy.

RESPONDENT

And

Rajapakse Arachchige Sanjeewa

Subhasha Rajapakse

No. 865A, Peradeniya Road, Kandy.

RESPONDENT-PETITIONER

Vs.

Belida Rachel Keegal

No. 93, W.A. Silva Mawatha,
Colombo 6.

APPLICANT-RESPONDENT

And

Rajapakse Arachchige Sanjeewa

Subhash Rajapakse

No. 865A, Peradeniya Road, Kandy.

REPODENT-PETITIONER-APPELLANT

Vs.

Belida Rachel Keegal

No. 93, W.A. Silva Mawatha,

Colombo 6.

APPLICANT-RESPONDENT-RESPONDENT

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Dhanushka Rahubadda for the
Respondent-Petitioner-Appellant.
Krishantha Kulathunga with Manohari
Perera for the Applicant-Respondent-
Respondent.

Written Submissions
of the Respondent
-Petitioner-Appellant
tendered on : 02.07.2025 and 24.03.2026

Written Submissions
of the
Applicant-Respondent
-Respondent
tendered on : 04.11.2025 and 24.03.2026

Judgement on : 03.07.2026

K. M. S. DISSANAYAKE, J.

The Applicant-Respondent-Respondent (hereinafter called and referred to as ‘the Respondent’) had by way of jurisdictional objection, raised in the written submissions, two preliminary legal objections as to the maintainability of the instant appeal as it is presently, constituted, and they may be re-produced *verbatim* the same as follows;

“a) The Appellant is not entitled to file this appeal to Your Lordships Court against the order of the Learned High Court Judge.

b) Order is not a final order and thus, the Appellant has no right of appeal.”

It is to be observed at this juncture that, the Counsel for the respective parties desired this Court to give a ruling on the preliminary legal objections on the jurisdiction on the strength of the written submissions and the written submissions were thus, furnished to this Court by the respective parties as directed by this Court. Hence, the order on the preliminary legal objections on jurisdiction on the strength of the written submissions as desired by the respective Counsel.

Since, the preliminary legal objection on jurisdiction **b)** as enumerated above, appears to me to go to the root of the instant appeal, which would if upheld, finally, and effectively, decide on the fate of the instant appeal, I would firstly, deal with it and make a ruling thereon, on the strength of the written submissions as desired by the respective Counsel.

b) Order is not a final order and thus, the Appellant has no right of appeal.

Let me briefly, set out the facts and circumstances relevant to the instant appeal as is discernible from the petition of appeal.

Application dated 21.01.2019, had been made by the Respondent to the Magistrate Court of Colombo praying for an order for maintenance for herself and her conceived child (පිළිසිඳු ගෙන ඇති දරුවා) under section 2(1) of the

Maintenance Act No. 37 of 1999 (hereinafter called and referred to as ‘the Act’); and that the learned Magistrate of Colombo had by his order dated 12.06.2019 (hereinafter called and referred to as ‘the MC Order’), made an interim maintenance order directing the Respondent-Petitioner-Appellant (hereinafter called and referred to as ‘the Appellant’) to pay Rs. 25,000/- for the maintenance of his wife-the Respondent who being the applicant thereto, from the date of the application so made to it; and that being aggrieved by the MC order, application in revision dated 17.07.2020, had been preferred by the Appellant to the High Court of the Western Province holden at Colombo (hereinafter called and referred to as ‘the High Court of the Province’) seeking *inter-alia*, to revise and set aside the MC order; and that the learned High Court Judge of the Western Province holden at Colombo (hereinafter called and referred to as ‘the learned High Court Judge of the Province’), had having upheld the preliminary legal objection raised by the Respondent as to the validity and/or legality of the affidavit filed by the Appellant in support of the averments in the petition filed thereat, dismissed the application in revision *in-limine*, in his order dated 17.11.2021 (hereinafter called and referred to as ‘the HC Order’), and hence, the instant appeal by the Appellant.

It is in this backdrop of the case, let me now, examine the preliminary legal objection on jurisdiction **b)** as enumerated above, with special reference to the law governing a preliminary legal objection on jurisdiction as such.

The Constitution of the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as ‘the Constitution’) in its Article 154P(6) provides for a right of appeal and it reads thus;

“(6) subject to the provisions of the Constitution and any law, any person aggrieved by a final order, judgement or sentence of any such Court, in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) may appeal there from to the Court of Appeal in accordance with Article 138.”

In the light of the Article 154P(6) of the Constitution, appeal will lie from a final order, judgement or sentence of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution.

It is not in dispute that the HC order is one made by the learned High Court Judge of the Province in the exercise of its revisionary jurisdiction vested in it under paragraphs (3)(b) of the Article 154P of the Constitution.

Upon a plain reading of Article 154P(6) of the Constitution in conjunction with Article 154(3)(b) of the Constitution, it becomes abundantly, clear that appeal will lie only from a final order, judgement or sentence of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution.

Now, the pertinent question is whether the MC order which is sought to be impugned in the instant appeal, can be construed as one falling within the ambit of a “final order, judgement or sentence” of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution as envisaged by Article 154P(6) thereof?

I would think it pertinent at this juncture to examine the criterion laid down by a fuller bench of the Supreme Court comprising of seven judges in **SC Appeal No.41/2015 - decided on 04.08.2017** in determining whether an order is a final judgment or not, and it may be re-produced *verbatim* the same as follows;

“In order to decide whether a order is a final judgment or not. it is my considered view that the proper approach is the approach adopted by lord Esher in Salaman vs Warner (supra) which was cited with approval by Lord Denning in Salter Rex vs Gosh (supra). It stated:

“If their decision which ever way it is given, will if it stands finally dispose of the matter in dispute, I think that for the purpose of these Rules it is final. On the other hand, if their decision, if given in one way, will finally dispose of the matter in dispute, but, if given in the other, will allow the action to go on, then I think it is not final, but interlocutory”.

Although the said criterion had been laid down by the Supreme Court under section 754(1) and (2) of the Civil Procedure Code as amended, the criterion so laid down therein, would in my view, be applicable to a situation arisen in this case too, with equal force in determining whether an order sought to be impugned is a final judgment or interlocutory order coming within the meaning of Article 154P(6) of the Constitution.

In this instance, the learned High Court Judge of the Province had in the HC order, dismissed the application in revision *in-limine*, by upholding the preliminary legal objection so raised by the Respondent as to the validity and/or legality of the affidavit filed by the Appellant in support of the averments in the petition filed thereat.

Hence, it becomes abundantly, clear that the learned High Court Judge of the Province had in the HC order, not in any manner, proceeded to finally, determine and adjudicate upon the rights of the parties to the application before it in revision upon its merits, instead he had merely, proceeded to dismiss the application in revision *in-limine*, by upholding the preliminary legal objection so raised by the Respondent as to the validity and/or legality of the affidavit filed by the Appellant in support of the averments in the petition filed thereat.

In the circumstances, the test to be applied in determining as to whether HC order sought to be impugned in the instant appeal, is a final order or an interlocutory order for all intents and purposes of Article 154P(6) of the Constitution as laid down by the Supreme Court in the **SC Appeal**

No.41/2015 (Supra) would be; If the HC order sought to be impugned in the instant appeal, whichever way it is given, will if it stands finally, dispose of the matter in dispute, it will then, be final. On the other hand, the HC order sought to be impugned in the instant appeal, if given in one way, will finally, dispose of the matter in dispute but, if given in the other way, will allow the application to go on, **then it is not final, but interlocutory**. [Emphasis is mine]

If the HC order if, given in one way, namely; allowing the application to go on by overruling the preliminary legal objection so raised by the Respondent as to the maintainability of the same, the application in revision will go on to its final adjudication on its merits thereby, finally, determining the rights of the parties thereto, but, if given in the other, namely; dismissing the application in revision by upholding the preliminary legal objection so raised by the Respondent as to the maintainability of the same, as done in the instant application in revision by the learned High Court Judge of the Province, it will be dismissed without going to its final adjudication on its merits.

Hence, the HC order cannot in any manner, be construed as being a final order within the meaning of by Article 154P(6) of the Constitution but, an interlocutory order.

In the result, I would hold that, an appeal will not lie under Article 154P(6) of the Constitution to this Court from the HC order but that, an appeal with leave first had and obtained from this Court in terms of the procedure laid down by section 331 of the Criminal Procedure Code as amended to be read with section 340 thereof, will lie therefrom, as held by this Court in the decision in **CA/PHC/0108/2022** as recent as 19.06.2026.

Hence, the instant appeal is misconceived in law and therefore, cannot sustain in law.

I would thus, uphold the preliminary legal objection on jurisdiction **b)** as enumerated above.

In view of my findings as aforesaid with regard to the preliminary legal objection on jurisdiction **b)** enumerated above, I would hold that the either the contentions so advanced and/or the submissions so made in support thereof, and/or the authorities so cited and relied on in the written submissions by the Appellant in opposition to the preliminary legal objection on jurisdiction **b)** enumerated above, are not entitled to succeed.

In the result, I would dismiss the instant appeal with costs *in-limine*.

Let me next, deal with the preliminary legal objection on jurisdiction **a)** as enumerated above.

a) The Appellant is not entitled to file this appeal to Your Lordships Court against the order of the Learned High Court Judge.

This is based on section 14(2) of the Act which provides for an appeal from an order made by a High Court in the exercise of its appellate jurisdiction, and it enacts thus;

“(2) Any person dissatisfied with an order made by a High Court in the exercise of its appellate jurisdiction under this section, may prefer an appeal therefrom to the Supreme Court, on a question of law. with the leave of the High Court, and where such leave is refused, with the special leave of the Supreme Court, first had an obtained.”

Hence, a plain and careful reading of section 14(2) of the Act, makes it abundantly, clear without an iota of doubt that any person dissatisfied with an order made by a High Court **in the exercise of its appellate jurisdiction** thereunder, **may prefer an appeal therefrom to the Supreme Court**, on a question of law. with the leave of the High Court, and where such leave is refused, with the special leave of the Supreme Court, first had an obtained. [Emphasis is mine]

In the light of the above, it becomes abundantly, clear that appeal to the Supreme Court from an order made by a High Court of the Province

established by Article 154P(1) of the Constitution under section 14(2) of the Act, will lie only in such instance where order had been made by a High Court established by Article 154P(1) of the Constitution **in the exercise of its Appellate jurisdiction vested in it by Article 154P(3)(b) of the Constitution** from an order made by a Magistrate under sections 2 or 11 of the Act, but not in such instance where order had been made by a High Court established by Article 154P(1) of the Constitution **in the exercise of its revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution** from an order made by a Magistrate under sections 2 or 11 of the Act, as done by the learned High Court Judge of the Province in this instance.

Hence, I would hold that the preliminary legal objection on jurisdiction **a)** as enumerated above, is totally, misconceived in law and as such it cannot sustain in law, and therefore, it should be over-ruled.

However, in view of my findings with regard to the preliminary legal objection on jurisdiction **b)** as enumerated above, instant appeal is liable to be set aside *in-limine*.

In the result, I would dismiss the appeal with costs subject however, to the above.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL